

Tentative Rulings for Department 503

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Tentative Ruling

Re: ***Silva v. James et al.***
Superior Court Case No. 25CECG02444

Hearing Date: May 14, 2026 (Dept. 503)

Motion: by Defendant Pistoiresi Ambulance Service of Madera, Inc. for an Order Compelling Initial Responses to Form Interrogatories, Set One, Special Interrogatories, Set One, Requests for Production of Documents, Set One; and Request for Sanctions

**If oral argument is timely requested, it will be entertained on
Thursday, May 28, 2026, at 3:30 p.m. in Department 503.**

Tentative Ruling:

To grant defendant Pistoiresi Ambulance Service of Madera, Inc.'s motion to compel plaintiff Shannon Silva to provide verified responses to Form Interrogatories, Set One, Special Interrogatories, Set One, and Requests for Production, Set One. (Code Civ. Proc., §§ 2030.290, subd. (b); 2031.300, subd. (b).) Plaintiff Shannon Silva is ordered to serve complete verified responses to the discovery set forth above, without objections, within 30 days of the clerk's service of the minute order.

To impose monetary sanctions in favor of defendant Pistoiresi Ambulance Service of Madera, Inc. and against plaintiff Shannon Silva. (Code Civ. Proc., §§ 2023.010, subd. (d), 2030.290, subd. (c), 2031.300, subd. (c).) Plaintiff Shannon Silva is ordered to pay \$935 in total sanctions to counsel for defendant Pistoiresi Ambulance Service of Madera, Inc. within 30 days of the clerk's service of the minute order.

Explanation:

Where a party fails to serve a timely response to interrogatories or demand for inspection, copying, testing, or sampling, the propounding party may move for an order compelling response. (Code Civ. Proc., §§ 2030.290, subd. (b), 2031.300, subd. (b).) A party that fails to serve a timely response to interrogatories or an inspection demand waives "any objection" to the request. (Code Civ. Proc., §§ 2030.290, subd. (a), 2031.300, subd. (a).) Answers to interrogatories that are not verified are tantamount to no response at all for the purpose of discovery. (*Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636.)

In the case at bench, on October 16, 2025, defendant Pistoiresi Ambulance Service of Madera, Inc. ("Defendant") served Form Interrogatories, Set One, Special Interrogatories, Set One, and Requests for Production, Set One, on plaintiff Shannon Silva ("Plaintiff") by electronic mail. Plaintiff was required to respond by November 17, 2025. Plaintiff conceded their failure to timely serve verified responses. Therefore, Defendant is

entitled to an order compelling Plaintiff to respond to the discovery at issue. (Code Civ. Proc., §§ 2030.290, subd. (b), 2031.300, subd. (b).) All objections are waived. (Code Civ. Proc., §§ 2030.290, subd. (a), 2031.300, subd. (a).)

Plaintiff requests 60 days to serve Defendant with verified responses to the above listed discovery because Shannon Silva is incarcerated which causes significant delays. Defendant argues that the request is unreasonable because Plaintiff's responses are complete and is only awaiting verification of the documents. The request is denied.

Sanctions

If the party asks for monetary sanctions against the party who failed to respond to interrogatories, the court shall impose a monetary sanction against the losing party on the motion to compel unless it finds that the one subject to the sanction acted with substantial justification or circumstances make the sanctions unjust. (Code Civ. Proc., § 2030.290, subd. (c).) Sanctions are similarly authorized against a party who failed to respond to a demand for inspection or production. (*Id.*, § 2031.300, subd. (c).) Sanctions must be for reasonable expenses in enforcing discovery, including attorney's fees. (*Id.*, § 2023.030, subd. (a).)

Counsel for Defendant submits that their partner's hourly rate is \$320 per hour and their law clerk's hourly rate is \$145 per hour. The court approves the hourly rates as reasonable. Defendant seeks imposition of 6 hours for preparation by their law clerk and 2 hours by a partner of the motions considered, and 2 hours for an appearance at a possible hearing. The court imposes sanctions in the reduced amount of \$935, inclusive of the \$180 in filing fees.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 5/13/2026.
(Judge's initials) (Date)